

23STCV11457 23STCV11457

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Case Number: 23STCV11457 Hearing Date: July 1, 2026 Dept: 406

KENNAN TILLMAN,

Plaintiff,

v.

CHA HOLLYWOOD MEDICAL
CENTER,

Defendant.

Case No.: 23STCV11457

Hearing Date: July 1, 2026

[TENTATIVE]

order RE:

defendant's motion for summary judgment
or adjudication

BACKGROUND

On May 22, 2023, Plaintiff Kennan

Tillman filed this action against CHA Hollywood Medical Center. Plaintiff filed the operative First Amended Complaint on July 31, 2023, alleging (1) wrongful termination in violation of public policy based on Labor Code section 1102.5, (2) blacklisting in violation of Labor Code section 1050, and (3) intentional

infliction of emotional distress.

On April 9, 2026, Defendant filed the instant motion for summary judgment or adjudication. Plaintiff filed an opposition on June 11, 2026. Defendant filed a reply on June 18, 2026.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1101.) To establish a triable issue of material fact, the party opposing the motion must produce "substantial responsive evidence." (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

EVIDENTIARY

OBJECTIONS

Defendant's objections are overruled.

DISCUSSION

I.

Whistleblower Retaliation

a. Protected Activity

Labor Code section 1102.5(b) makes it unlawful for an employer to retaliate against an employee for reporting a violation of a local, state, or federal statute or regulation. “[T]he protections of section 1102.5(b) apply only where the disclosing employee ‘has reasonable cause to believe that the information discloses a [legal] violation.’” (People ex rel. Garcia-Brower v. Kolla’s, Inc. (2023) 14 Cal.5th 719, 734.) Section 1102.5 “does not protect employees who do not believe or who unreasonably believe that the information they are disclosing shows a violation of the law.” (Contreras v. Green Thumb Produce, Inc. (2025) 116 Cal.App.5th 1251, 1260.) An employee does not engage in protected activity where “the disclosures indisputably encompassed only the context of internal personnel matters involving a supervisor and her employee, rather than the disclosure of a legal violation.” (Patten v. Grant Joint Union High School Dist. (2005) 134 Cal.App.4th 1378, 1384-85.)

Defendant argues that the only complaint Plaintiff personally filed concerned his subordinate, Cynthia Plummer, but Plaintiff admits that he does not believe Plummer did anything illegal. (Def.’s Stmt. of Undisputed Facts (UF) 1-2.) Citing Patten, Defendant argues that Plaintiff did not engage in whistleblowing activity by merely forwarding others’ complaints, which reflects internal personnel matters, not legal violations.

However, Patten did not create a categorical rule that internal complaints cannot constitute protected activity. To the contrary, section 1102.5 specifies that reporting “to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance” constitutes protected activity. (Lab. Code, § 1102.5(b).) This is true “regardless of whether disclosing the information is part of the employee’s job duties.” (Ibid.) The court in Patten found that the reporting in that particular case consisted of purely internal personnel matters which did not implicate legal violations. But that does not mean internal personnel complaints can never implicate legal violations falling within the purview of section 1102.5. Thus,

the fact that Plaintiff escalated complaints by others in line with his job duties and company policy does not, by itself, exclude the activity from the protection of section 1102.5.

Rather, the question is whether “the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation.” (See Lab. Code, § 1102.5(b).) Plaintiff testified, “the issues that I reported were issues that were specifically coming from patient complaints that are documented, um, family -- I mean, family -- family complaints and the patient family complaints from employee complaints within our department from external department complaints.” (Def.’s Ex. 1 at 27:12-18.) Plaintiff also recalled discussing with HR and Director Toni Bernardo that Plummer was mistreating or making negative comments about Koreans. (Id. at 99:11-24.) Defendant has not precluded the possibility that these complaints involved legal violations or at least reflected Plaintiff’s reasonable belief that a legal violation had occurred.

Plaintiff’s testimony that Plummer was not “doing anything illegal” is not dispositive. (See Def.’s Ex. 1 at 43:1-8.) This is a vague, conclusory assertion, not a specific admission that Plaintiff did not engage in protected activity. Moreover, Plaintiff testified that he expressed concern about Defendant retaining Plummer despite the issues with her conduct, telling Defendant “I believe we have a huge liability.” (Id. at 244:13-16.) Plaintiff testified that he was concerned because “you have somebody who is harassing, um, outside staff members, someone who’s harassing patients, family members, an entire protected group then, um, they are putting this hospital in risk and creating a liability for them.” (Id. at 244:18-22.) This latter testimony suggests that Plaintiff did in fact believe Plummer’s actions violated the law. To the extent the testimony is contradictory, that is a matter of weight and credibility for the trier of fact to resolve. Ultimately, the record contains sufficient evidence to raise a triable issue.

b. Causation

To establish a claim under section 1102.5, the plaintiff must show a causal link between his protected activity and the adverse employment action. (St. Myers v. Dignity Health (2019) 44 Cal.App.5th 301, 314.)

Defendant argues that even if Plaintiff engaged in protected activity, he cannot establish a causal link because he admittedly does not know why he was terminated. (UF 3-4.) However, Plaintiff's testimony that he could not understand why he was terminated reflects his belief that the termination was unjustified, especially because witnesses testified that Plummer was the aggressor during the subject altercation, not Plaintiff. (See Def.'s Ex. 1 at 253:5-255:22.) Plaintiff did not admit that there is no evidence of prohibited animus. At the very least, the testimony is reasonably open to interpretation. The fact that Plaintiff was suspended and terminated shortly after making complaints about Plummer sufficiently raises an inference of retaliation. Thus, triable issues remain over causation.

II.

Blacklisting

"Any person, or agent or officer thereof, who, after having discharged an employee from the service of such person or after an employee has voluntarily left such service, by any misrepresentation prevents or attempts to prevent the former employee from obtaining employment, is guilty of a misdemeanor." (Lab. Code, § 1050.) "Labor Code section 1050 applies only to misrepresentations made to prospective employers other than the defendant. It does not apply to misrepresentations made by employees of the defendant to other of the defendant's employees." (Kelly v. General Telephone Co. (1982) 136 Cal.App.3d 278, 288.)

In his deposition, Plaintiff denied that the blacklisting claim was based on "HPMC contact[ing] potential employers to make sure that [he] didn't get a job." (Def.'s Ex. 1 at 257:21-25.) Instead, Plaintiff testified that he was blacklisted in the following manner: "after I've applied for the job and you put down your references and you get interviewed and they check your references or when you are applying for a job, you're ineligible to be rehired -- my termination letter said I was terminated and ineligible to be rehired. That's a really large hurtical (sic) -- hurdle to overcome." (Id. at 257:25-258:6.) However, Plaintiff also confirmed that "[n]o one sent [the letter] to potential employers." (Id. at 258:7-9.)

Defendant argues that this claim fails because the only supporting evidence is a termination letter sent to Plaintiff himself, not to any prospective employer. (UF 6, 8.) According to

Defendant, the fact that Plaintiff has had to tell prospective employers he is ineligible to be rehired by Defendant does not constitute blacklisting, because the statement is true, and Defendant is not the one making the statement as required under section 1050. The Court agrees that this precludes the blacklisting claim as a matter of law. Thus, Defendant has satisfied its initial burden on the motion.

Plaintiff argues that the termination letter itself contains misrepresentations about Plaintiff. However, this does not rebut the fact that the letter was not transmitted to anyone other than Plaintiff. If the letter is the source of the alleged misrepresentations, and the letter was indisputably not communicated to any third party, then Defendant did not make a misrepresentation within the meaning of section 1050. (See Kelly, supra, 136 Cal.App.3d at p. 288.) Plaintiff has no evidence that Defendant otherwise transmitted false information to a third party.

Plaintiff argues that “[a] jury could find that HPMC’s disputed accusations and ineligible-for-rehire designation were intended to impede future employment, including with HPMC affiliates and employers checking prior employment eligibility.” (Opp. 8:14-17.) However, section 1050 does not create freestanding liability for any act that impedes future employment. The statute specifically requires “misrepresentations made to prospective employers other than the defendant.” (Kelly, supra, 136 Cal.App.3d at p. 288.) Plaintiff testified that Defendant did not contact prospective employers to prevent them from hiring Plaintiff. Plaintiff testified that the termination letter was not transmitted to any prospective employer. Plaintiff identifies no other misrepresentation by Defendant to a prospective employer. Thus, as a matter of law, there was no misrepresentation within the meaning of section 1050.

Lastly, Plaintiff argues that Defendant has not affirmatively proven that it did not send any false information to a prospective employer. However, as discussed above, Defendant satisfied its initial burden by presenting Plaintiff’s testimony that Defendant did not contact any prospective employer to prevent him from being hired and did not transmit the termination letter containing allegedly false accusations to any prospective employer. Besides the letter, Plaintiff was unable to identify any action that Defendant took against him after his termination. (Def.’s Ex. 1 at 260:8-14.) The burden thus shifted to Plaintiff to present

“substantial responsive evidence” that Defendant communicated false information to a third party. (See Sangster, *supra*, 68 Cal.App.4th at p. 166.) Plaintiff has not met this burden.

Therefore, the blacklisting claim fails as a matter of law.

III.

Intentional Infliction of Emotional Distress

To establish a cause of action for intentional infliction of emotional distress, a plaintiff must prove: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing, or reckless disregard of the probability of causing, emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.) “For conduct to be outrageous, it must be so extreme as to exceed all bounds of that usually tolerated by a civilized community.” (*Faunce v. Cate* (2013) 222 Cal.App.4th 166, 172.) “Severe emotional distress [is] emotional distress of such substantial quantity or enduring quality that no reasonable man in a civilized society should be expected to endure it.” (*Fletcher v. Western Life Insurance Co.* (1970) 10 Cal.App.3d 376, 397.)

The potential whistleblower retaliation is not outrageous as a matter of law. While Defendant may have violated the Labor Code by terminating Plaintiff, there are no facts demonstrating aggravating circumstances to warrant recovery for IIED. Even assuming Defendant unlawfully blacklisted Plaintiff, those alleged actions were also not egregious as a matter of law. Therefore, the IIED claim fails as a matter of law.

CONCLUSION

Defendant's motion for summary judgment is DENIED. Defendant's motion for summary adjudication is GRANTED as to the second and third causes of action and DENIED as to the first cause of action.